

25STCV04351 25STCV04351

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Case Number: 25STCV04351 Hearing Date: August 24, 2026 Dept: 400

MOTION FOR LEAVE

The Court tenders the following decision

in the matter Narine Deremsezyan v. Jaguar Land Rover North America, LLC, et al., Los Angeles County Superior Court case number 25STCV04351, set for hearing on August 24, 2026. Narine Deremsezyan (Plaintiff) moves for leave to file a first amended complaint (FAC) in this matter. Jaguar Land Rover North America, LLC, et al. (collectively, Defendants) have not filed an opposition. The motion is granted.

A.

Legal Standard

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., § 473, subd. (a)(1).) California courts are required to permit liberal amendment of pleadings in the interest of justice between the parties to an action. (Code Civ. Proc., § 473, subd. (a); Dieckmann v. Superior Court (1985) 175 Cal.App.3d 345, 352.) "Public policy dictates that leave to amend be liberally granted." (Centex Homes v. St. Paul Fire & Marine Insurance Co. (2015) 237 Cal.App.4th 23, 32 (Centex Homes).)

Under California Rules of Court,

rule 3.1324, a motion to amend a pleading before trial must include the following content: (1) a copy of the proposed amendment or amended pleading; (2) a statement regarding what allegations in the previous pleading are

proposed to be deleted if any, and where they are located; and (3) a statement regarding what allegations are proposed to be added to the previous pleading, if any, and where. Subdivision (b) of rule 3.1324 additionally requires that the motion be accompanied by a separate, supporting declaration, specifying the following: (1) the amendment's effect; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

B. Discussion

Plaintiff moves for an order granting her leave to file an FAC adding additional allegations to support her negligent and intentional misrepresentation claims along with a new cause of action for conversion. (Hovsepyan Decl. ¶ 18, Ex. 2.) Plaintiff has complied with the procedural requirements of rule 3.1324(a) by providing a copy of the proposed amended pleading (*ibid.*) and a statement regarding the allegations to be added. Plaintiff has also satisfied the requirements of 3.1324(b). She has offered a declaration speaking to the proposed amendment's effect, why it is necessary and proper, and why it was not proposed earlier, namely that the relevant facts arose between February 2026 and now. (*Id.* ¶¶ 7–9, 14.) Thus, Plaintiff's motion is procedurally proper. Accordingly, Plaintiff's motion is granted.

C.

Conclusion

The Court grants
the motion.